

		Defendant has reserved its request for sanctions for a separate motion. (See <i>London v. Dri-Honing Corp.</i> (2004) 117 Cal.App.4th 999, 1008.) Defendant’s requests for judicial notice are granted. (Evid. Code, § 452(d).) The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2033.220(c) requires a party to state “a reasonable inquiry concerning the matter in the particular request has been made” Plaintiff responded to each request: “Responding Party conducted a reasonable inquiry into the matters addressed in the request. That inquiry included reviewing documents in Responding Party’s possession, custody, or control and attempting to identify individuals with knowledge of the transactions or occurrences giving rise to the above-captioned action. However, after reasonable inquiry and investigation, Responding Party presently lacks sufficient information or knowledge to admit the truth of the matter stated in the request, and therefore Responding Party denies.” (Averett Decl., Ex. H.) Plaintiff’s person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: “[t]he matters stated in the foregoing document are true of my own knowledge” (Averett Decl., Ex. H.) Later, Small testified at her deposition, she did not conduct a reasonable inquiry. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to nos. 1, 2, 4, 6, 8, 9-11, 13-17, and 20-26 after conducting “a diligent search and reasonable inquiry” and is ordered to provide a verification by the person with personal knowledge of the inquiry.
4.	LIMON VS. RBANQUEST 2023-01361669	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiffs Francisco Limon and Belen Limon’s unopposed Motion to Compel Deposition of Defendant Rohit Eddie Bhatia is DENIED. Code of Civil Procedure, section 2024.020 provides: (a) Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action. (b) Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings. Code of Civil Procedure, section 2024.050, subdivision (a) provides: “On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery

heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.”

Here, the court initially set trial for 5/1/26. (ROA 78.) On 4/28/26, the court, on its own motion, continued trial to 6/26/26. (ROA 138.) The court did not reopen discovery (Ibid.) Thus, the last day to hear this motion was 4/16/26. Plaintiffs served and filed the motion on 1/14/26, noticing the hearing for 6/16/26. However, Plaintiffs failed to move to reopen discovery under Section 2024.050.

The motion is untimely and therefore denied.

2. MOTION TO STRIKE ANSWER

Plaintiffs Francisco Limon and Belen Limon’s unopposed Motion to Strike Answer and Enter Default of Defendant Jaswant Rai Enterprises Inc. dba R Banquet (“R Banquet”) is DENIED.

Plaintiffs move to strike R Banquet’s answer and enter its default on the grounds that R Banquet has been an unrepresented corporation since 11/18/25.

Pursuant to Code of Civil Procedure section 436, a court may, upon a motion made pursuant to section 435 or at any time in its discretion, “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., §436, subd. (b).)

“[A] corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney.” (*Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal. App. 4th 1094, 1101, citing *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 727, 729 (*Merco*).) “It is the duty of the trial judge to advise the representative of the corporation of the necessity to be represented by an attorney.” (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.)

On 11/18/25, the Court granted Defense counsel’s motion to be relieved as counsel for R Banquet, which is a California corporation. (ROA 106, 109; Plummer Decl., ¶¶ 2, 3, Exs. A, B.) The minute order stated, “James Perez will be relieved as counsel of record for Defendants effective upon filing of a proof of service of the signed order on client” and required the moving attorney to give notice. (ROA 109.) The signed order granting the motion includes a “NOTICE TO CLIENT” advising R Banquet that it is no longer represented by counsel, a corporation cannot represent itself, and “[f]ailure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment.” (ROA 106 at ¶ 10; Plummer Decl., ¶ 3, Ex. B at ¶ 10.)

		Plaintiffs attempted to reach R Banquet by both mail and telephone to determine if it intended to obtain representation by counsel but never reached a living person and never received a call back. (Plummer Decl., ¶ 6.) The court finds Plaintiffs adequately attempted to meet and confer with Defendant about the status of its representation prior to filing this motion. (See Code Civ. Proc., § 435.5, subd. (a).) There is no evidence that R Banquet has obtained counsel. However, to date, James Perez has not filed a proof of service of the signed order granting the motion to be relieved as counsel on R Banquet. Thus, James Perez is still R Banquet’s attorney of record. The motion is DENIED.
5.	KRUPP VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY 2023-01370850	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT The Motion of Plaintiffs Marshall and Serafina Krupp individually and as trustees for the Marshall Krupp and Serafina Krupp Family Revocable Trust for leave to file a Third Amended Complaint (“TAC”) is GRANTED. “The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . .” (Code Civ. Proc. § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc. § 576.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.) “Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown. However, even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.” (<i>P&D Consultants, Inc. v. City of Carlsbad</i> (2010) 190 Cal.App.4th 1332, 1345; internal citations and internal quotation marks omitted.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, this policy should be applied only ‘[w]here no prejudice is shown to the adverse party. . . .’ [Citation.] A different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party is shown.’ [Citation.]” (<i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 487.) Plaintiffs seek to file a TAC to add factual allegations supporting punitive damages and a prayer for punitive damages.